WEB COPY

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 09.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.23127 of 2026

1.Jeyaprakash @ Jeyaprakashraj

2.Praveenkumar

... Petitioners/
Accused 5 & 3

Vs

The State of Tamil Nadu rep by
The Inspector of Police,
Mallanginar Police Station,
Virudhunagar District.
(Crime No.206 of 2026)

... Respondent/
Complainant

For Petitioners: Mr.G.R.Nesakkaran,
Advocate

For Respondent : Mr.N.Balasubramanian,
Counsel for State of TN(Crl.Side)

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in Crime No.206 of 2026 on the file of the Respondent Police.

WEB COPY

ORDER : The Court made the following order :-

The petitioners / accused 5 and 3, who were arrested and remanded to judicial custody on 17.09.2026 for the offence punishable under Section 25(1B)(b) of Arms Act, in Crime No.206 of 2026, on the file of the respondent police, seek bail.

2. The case of the prosecution is that on 17.09.2026, at about 10.30 a.m., while the respondent police, along with the police party, were on patrol duty near the Devar Statue at Villipathiri Bus Stop to prevent law and order issues, the petitioners and the other accused were allegedly found in possession of two long patta knives. They were allegedly rubbing the knives against the road, causing sparks and thereby creating fear and alarm among the members of the public. The police apprehended the petitioners and accused 1 and 2, while the fourth accused escaped from the place of occurrence.

3. The learned counsel appearing for the petitioners would submit that the petitioners are

WEB COPY

innocent and they have not committed any offence as alleged by the prosecution. He would further submit that the petitioners are in judicial custody from 17.09.2026.

4. The learned Counsel for State of TN (Criminal Side) appearing for the respondent police would submit that as of now, the petitioners are not having any pending previous cases.

5. Considering the nature of the charges levelled as against the petitioners and also the facts that the petitioners are in judicial custody from 17.09.2026 and that as of now, the petitioners are not having any pending previous cases, this Court is inclined to grant bail to the petitioners subject to the following conditions:

6. Accordingly, the petitioners are ordered to be released on bail on their executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** each with two sureties each for a like sum to the

WEB COPY

satisfaction of the learned Principal District and Sessions Judge, Srivilliputtur, Virudhunagar District, and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Sessions Judge / concerned court may obtain a copy of their Aadhar card or Bank Pass Book to ensure their identity;

(ii)the petitioners shall report before the respondent police daily at 10.30 a.m., for a period of one month and thereafter, as and when required for interrogation;

(iii)the petitioners shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioners shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Sessions Judge / Trial Court is entitled to take appropriate action against the petitioners in accordance with law as if the conditions have been imposed and the petitioners are released on bail by the learned Sessions Judge / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji***

WEB COPY

vs. State of Kerala [(2005)AIR SCW 5560];

(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
09.10.2026

CSM

TO

1. The Principal District and Sessions Judge,
   Srivilliputtur, Virudhunagar District.

2. Do through
   The Chief Judicial Magistrate,
   Virudhunagar.

3. The Officer-in-Charge,
   District Prison,
   Virudhunagar.

4. The Inspector of Police,
   Mallanginar Police Station,
   Virudhunagar District.

5. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

WEB COPY

K.MURALI SHANKAR,J

CSM

ORDER
IN
CRL OP(MD) No.23127 of 2026

Date : 09.10.2026